

22. **Covenant to settle future property.**— But where a person was appointed new trustee of a marriage settlement, which contained a covenant by the husband for the settlement of the wife's future property, it was held that he was entitled to assume that the covenant had been duly performed up to the time of his becoming trustee, if he had no reason to suspect the contrary (*c*).

23. **Inventory.**— A trustee of chattels personal for the separate use of a wife must take care, on accepting the trust, to have the effects ascertained by a proper inventory, or in a suit for an account of the trust estate he may be deprived of his costs (*d*).

24. **A trustee by mistake.**— We may add in conclusion, that if a person by mistake or otherwise assume the character of trustee, when it really does not belong to him, and so becomes a *trustee de son tort*, he may be called *to account by the *cestuis que trust*, for the monies [*208] he received under colour of the trust. Thus, where a testator devised an estate to W. Thompson upon certain trusts, with a power of sale to him, his heirs and assigns, and the trustee devised all his real estate to his sister Grace Thompson, charged with 50*l.* to his friend Watson, and died leaving his brother Jonas Thompson his heir-at-law, and, on the death of the trustee, Grace Thompson assuming herself to be the devisee, sold the estate and received the money and paid it wrongfully to the tenant for life; in a suit against the representative of Grace Thompson, the Court held that, although she was neither heir nor devisee, yet as she had acted as trustee and received the money in that character, she was accountable for it to the *cestuis que trust* (*a*).

N. S. 204; *Townley v. Bond*, 2 Conn. & Laws. 405; *James v. Frearson*, 1 Y. & C. C. C. 370; *Ex parte Geaves*, 25 L. J. Bank. 53; 2 Jur. N. S. 651; *Youde v. Cloud*, 18 L. R. Eq. 634; and see *Malzy v. Edge*, 2 Jur. N. S. 80; but this decision seems opposed to the current of authorities.

(*c*) *Geaves v. Strahan*, 8 De G. M. & G. 291.

(*d*) *England v. Downs*, 6 Beav. 269; see 279.

(*a*) *Rackham v. Siddal*, 16 Sim. 297; affirmed by the Lord Chancellor on appeal as to the point under consideration, 1 Mac. & G. 607; *Pearce v. Pearce*, 22 Beav. 248; *Life Association of Scotland v. Siddal*, 3 De G. F. & J. 58; *Hennessey v. Bray*, 33 Beav. 96; *Yardley v. Holland*, 20 L. R. Eq. 428.